

26STCV08132 26STCV08132

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Case Number: 26STCV08132 Hearing Date: June 26, 2026 Dept: 307

11 TENTATIVE RULING 9:15 a.m., Friday, June 26, 2026

CARLOS

BALDERAS v. GENERAL MOTORS, LLC [26STCV08132]

DEMURRER

WITH A MOTION TO STRIKE OF DEFENDANT GENERAL MOTORS, LLC AS TO THE FIRST
AMENDED COMPLAINT

MEET AND

CONFER: OK. Complies with CCP 430.41.

TIMELINE:

Lemon law action

10/3/2024: Plaintiff Carlos Balderas

("Plaintiff") purchases a 2024 GMC Sierra 1500 (the "Vehicle") from Hardin Buick GMC ("Hardin"), an authorized dealership for Defendant General Motors, LLC ("GM"), pursuant to a Retail Installment Sale Contract. GM issued written warranties for the Vehicle in connection with the purchase.

Thereafter,

the Vehicle develops non-conformities to the warranty, including engine defects. Plaintiff delivers the vehicle to GM's authorized repair facilities for repairs on 12/18/2025 and 3/19/2026.

3/13/2026: Plaintiff files the Complaint. The

operative First Amended Complaint ("FAC"), filed 4/14/2026, alleges causes of

action for:

1. Breach of Implied Warranty of Merchantability – Violation of the Song-Beverly Act (“SBA”)
2. Breach of Express Warranty – Violation of the SBA
3. Fraudulent Concealment
4. Violation of Civil Code Section 1750 et seq. – Violation of the Consumer Legal Remedies Act (“CLRA”)

5/15/2026: GM files this Demurrer and Motion to Strike, which is followed by Plaintiff’s Opposition (6/9/2026) and GM’s Reply (6/16/2026).

TENTATIVE

RULING: DEMURRER OF DEFENDANT GENERAL MOTORS, LLC is SUSTAINED with LEAVE TO AMEND in part and OVERRULED in part.

MOTION

TO STRIKE OF DEFENDANT GENERAL MOTORS, LLC is DENIED.

I. DEMURRER

GM demurs to the third and fourth causes of action for fraudulent concealment and violations of the CLRA, respectively, on the grounds that Plaintiff fails to plead sufficient facts to state the causes of action against GM.

A.

3rd

Cause of Action: Fraudulent Concealment – SUSTAINED with LEAVE TO AMEND

The Court

finds Plaintiff fails to his claim for fraudulent concealment^[1] with the requisite level of particularity for pleading fraud against an entity defendant, such as GM. Fraud must be pled specifically and “general and conclusory allegations do not suffice.” (Lazar v. Superior Court, (1996)

12 Cal.4th 631, 645.) “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43 (Rattagan).) Moreover, “[t]he requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Here, the Court finds the first element of Plaintiff’s fraud claim is insufficiently pled. Plaintiff’s fraudulent concealment claim alleges that GM withheld material information about the Vehicle’s defective engine before the Vehicle was sold to Plaintiff. (FAC, ¶¶ 19, 133-136.) The issue with the FAC is that Plaintiff does not allege specific facts identifying the nature and source of the alleged concealment with respect to the sale and/or repair transactions with Plaintiff in particular or with respect to his specific Vehicle.

First, Plaintiff fails to identify the names or any other identifying information for the sales representatives, repair technicians, or other “authorized agents” who supposedly concealed the Vehicle’s engine defect from Plaintiff. (Id. ¶¶ 11-13, 41-42, 45.) Plaintiff’s vague references to his interactions with GM’s authorized agents also fail to sufficiently clarify these agents’ knowledge of the purported engine defects, the extent of their authority to speak on behalf of GM, when Plaintiff spoke to any alleged sales representatives, or what (specifically) GM’s agents told Plaintiff regarding the engine in his Vehicle or its defects. (Tarmann, supra, 2 Cal.App.4th at p. 157.)

Second, Plaintiff’s vague references to GM’s “advertisements and marketing materials” fail to apprise GM of the specific source and extent of the omissions in these materials. (FAC, ¶¶ 38, 101.) Plaintiff does not identify the specific types of marketing materials that he personally consulted before purchasing the Vehicle, whether those materials specifically referenced the exact model and year of the Sierra purchased by Plaintiff, or when and where Plaintiff consulted any such advertising materials. At most, while Plaintiff

extensively details GM's internal knowledge about the "defects associated with the Defective Engine since at least 2007," these general allegations fail to connect GM's knowledge about its vehicles in general to any actionable omission of material fact regarding Plaintiff's specific Vehicle. (Id. ¶¶ 47-97.)

The parties also dispute whether Plaintiff has adequately demonstrated that GM owed Plaintiff a duty to disclose the engine defects. A "duty to disclose" arises based on "a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.]'" (Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 901-902 (Bjoin), quoting Rattagan, supra, 17 Cal.5th at p. 40-41; see LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.) "All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." (Ibid.) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (Bjoin, supra, 113 Cal.App.5th at pp. 901-902, quoting Rattagan, supra, 17 Cal.5th at pp. 40-41; see BiglerEngler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 321.)

Here, Plaintiff alleges that he purchased the Vehicle from GM's authorized dealership and that GM gave Plaintiff a written warranty in connection with the sale. (FAC, ¶¶ 6, 8.) Plaintiff expressly clarifies that GM's authorized dealerships, including Hardin, are authorized to "undertake several specifically enumerated obligations for the benefit of [GM's] brand, reputation, and position in the marketplace," and act as sales agents on behalf of GM. (Id. ¶¶ 103-104.) For pleading purposes, Plaintiff's allegations of a principal-agency relationship between GM and Hardin for the purpose of selling and marketing GM's vehicles, combined with GM's express written warranty for Plaintiff's Vehicle, are sufficient to demonstrate the type of "direct dealings" necessary to impose a duty to disclose upon GM. (See Dhital v. Nissan North America, Inc., (2022) 84 Cal.App.5th 828, 844 [finding that a transactional relationship was sufficiently pled for the purposes of a demurrer where "plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers."].)

Notwithstanding,
in light of Plaintiff's failure to overcome the heightened pleading standard
with respect to the alleged fraudulent omissions by GM and/or its agents, the
Court finds that Plaintiff's fraudulent concealment claim is insufficiently
pled.

Therefore,
GM's demurrer to the third cause of action in the FAC is SUSTAINED with LEAVE
TO AMEND.

B.

4th

Cause of Action: Violation of the CLRA – OVERRULED

Plaintiff's

fourth cause of action for violation of the CLRA is sufficiently pled. "The
CLRA prohibits 'unfair methods of competition and unfair or deceptive acts or
practices' in transactions involving the sale of goods or services to any
consumer. (Gutierrez v. Carmax Auto Superstores California (2018)
19 Cal.App.5th 1234, 1249 (Gutierrez), quoting Civ. Code § 1770.) "[T]o
obtain relief under the CLRA, [a consumer] must have suffered some damage
caused by a practice deemed unlawful under Civil Code section 1770." (Gutierrez,
supra, 19 Cal.App.5th at 1249, quoting Steroid Hormone Product
Cases (2010) 181 Cal.App.4th 145, 156.) For example, the following
conduct is considered unlawful and unfair under Civil Code section 1770,
subdivision (a):

(5) Representing

that goods or services have sponsorship, approval, characteristics,
ingredients, uses, benefits, or quantities that they do not have or that a
person has a sponsorship, approval, status, affiliation, or connection that the
person does not have.

(7) Representing

that goods or services are of a particular standard, quality, or grade, or that
goods are of a particular style or model, if they are of another.

(9) Advertising

goods or services with intent not to sell them as advertised.

(14) *representing*

that a transaction confers or involves rights, remedies, or obligations that it does not have or involve, or that are prohibited by law.

(Civ.

Code, § 1770, subd. (a).)

Here,

Plaintiff alleges that GM violated Civil Code sections 1770, subdivisions (a)(5), (7), (9), and (14) by: (1) representing that the Vehicle's engine model had "more power" and better fuel economy while not reducing performance and durability, despite knowing that the engine was defective, (2) selling the Vehicle to Plaintiff despite knowing that the engine did not conform to the standard, quality, or grade of the vehicles GM advertised, and (3) representing to Plaintiff that the warranty conferred a repair obligation that GM knew could not be met. (FAC, ¶¶ 149-150, 154, 157, 159-160.) GM argues that these allegations fail to state a violation of the CLRA because Plaintiff has not specifically identified any particular misrepresentations to Plaintiff regarding his Vehicle, as described above with respect to Plaintiff's fraud claim. (Mot., at pp. 10-11.) Even so, causes of action under the CLRA need only be "stated with reasonable particularity, which is a more lenient pleading standard than is applied to common law fraud claims." (Gutierrez, *supra*, 19 Cal.App.5th at 1261, *italics added*.) Thus, Plaintiff need not plead the alleged violations of the CLRA with the same level of heightened particularity that is required for his fraud claim.

In this

case, the Court finds that the FAC adequately identifies the defective qualities of "certain 2024 GMC Sierra vehicles," including Plaintiff's Vehicle (FAC, ¶¶ 17-20, 37), that GM knew about the purported engine defects (*Id.* ¶¶ 20-22, 47-85), and that GM nevertheless has marketed the defective engine models and features without disclosing the defective nature of the vehicles. (*Id.* ¶¶ 30-32, 37, 86-97). For example, Plaintiff alleges that GM advertised the Vehicle's engine model as saving more fuel and promised a "satisfying feeling of power on demand." (*Id.* ¶¶ 35, 91.) Plaintiff alleges that GM's marketing materials detail the Vehicle's "numerous styling attributes, durability, fuel efficiency, and impressive performance" and that GM's sales representatives "reiterated many of the same Vehicle attributes and benefits" from the marketing materials, including the "quality, durability, fuel

efficiency, and impressive performance of the GMC Sierra.” (Id. ¶¶ 38-39.) Plaintiff further alleges that GM has advertised the defective engine has having “more power,” “sophisticated software” to “seamlessly” balance power and fuel economy, “greater efficiency,” and superiority to competitors. (Id. ¶¶ 87-92.) Despite these representations, Plaintiff alleges GM “intentionally and knowingly concealed” the Vehicle’s engine defects and the omissions were material to Plaintiff’s decision to buy the Vehicle. (Id. ¶¶ 93-94.)

While GM argues that Plaintiff’s CLRA claim is based on “pure conclusions of law without any supporting facts,” the Court disagrees. (Mot., at p. 11.) The above allegations regarding GM’s affirmative misrepresentations about the characteristics and quality of the same defective engine model used in the Vehicle are sufficient to demonstrate that GM falsely represented that the Vehicle’s engine was “of a particular standard, quality, or grade” that it did not have with the intent to sell the Vehicle. The facts alleged in the FAC are reasonably particular and are therefore sufficient to state a claim for violations of Civil Code section 1770, subdivision (a) at the pleading stage.

GM also argues that Plaintiff fails to allege that he provided adequate notice of the CLRA violations to GM pursuant to Civil Code section 1782. However, Plaintiff expressly alleges that he complied with this notice provision by notifying GM on March 13, 2026— in a writing sent by certified mail, return receipt requested— of the particular alleged violations of Civil Code section 1770 and demanding the repair or replacement of the Vehicle. (FAC, ¶ 164.) In the original Complaint, Plaintiff expressly reserved the right to plead a claim for damages pursuant to Civil Code section 182, subdivision (d) “upon the expiration of the thirty days after the notice is given.” (Compl., ¶ 165.) The court in *Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235 (*Morgan*) expressly permitted this approach to the notice requirement. (Id. at p. 1260 [rejecting the argument that plaintiff’s CLRA claim fails because they did not send the required notice before the commencement of the lawsuit because the argument was “contrary to the express language of the notice statute.”].) Like in *Morgan*, here, Plaintiff was “not required to provide notice before filing the original ... complaint[] because [he] did not seek damages under the CLRA in [that] complaint[].” (Ibid.)

Therefore,
GM’s demurrer to the fourth cause of action in the FAC is OVERRULED.

II. MOTION

TO STRIKE – DENIED

GM moves

to strike Plaintiff's request for punitive damages from the FAC. To the extent that Plaintiff is seeking punitive damages in connection with his third cause of action for fraudulent concealment, GM's argument is moot based on the above ruling sustaining the demurrer to this cause of action. (See FAC, ¶ 141.) However, the Court finds that Plaintiff's request for punitive damages is neither irrelevant nor improper with respect to Plaintiff's fourth cause of action for violations of the CLRA. (Id. ¶¶ 163, 165.) "The CLRA authorizes any consumer 'who suffers any damage' because of a[n] unlawful method, act or practice to bring an action for various forms of relief, including (1) actual damages, (2) an order enjoining the methods, acts, or practices, (3) restitution of property, (4) punitive damages, and (5) any other relief the court deems proper." (Gutierrez, *supra*, 19 Cal.App.5th 1234, 1263, italics added, citing Civ. Code, § 1780, subd. (a).) Since punitive damages may be recoverable for violations of the CLRA, Plaintiff's request need not be stricken at the pleading stage.

Therefore,

GM's motion to strike is DENIED.

Defendant General Motors, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 6/25/26 at 3:00.

[1] "As with all fraud claims, the necessary elements of a concealment/suppression claim consist of '(1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage.' [Citation.]" (Dhital *v.* Nissan North America, Inc., (2022) 84 Cal.App.5th 828, 843 (Dhital).) "Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (Id. at

pp. 843-844.)